

25STCV35221 25STCV35221

County: los-angeles

Division: Civil Law and Motion

Department: U

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Case Number: 25STCV35221 Hearing Date: June 29, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

BLUE HILL
SPECIALTY INSURANCE COMPANY, INC., an Illinois corporation,

Plaintiff,

vs.

METAKSYA SAHAKYAN, an individual; RUZANNA
HARUTYUNYAN, an individual; GAYANE HOVHANNISYAN, an individual; and DOES
1-25, inclusive,

Defendants.

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CASE NO: 25STCV35221

[TENTATIVE] RULING OVERRULING DEFENDANTS'
DEMURRER TO PLAINTIFF'S COMPLAINT

Dept. U

8:30 a.m.

June 29, 2026

I.

BACKGROUND

This case arises from an alleged fraudulent
insurance claim.

On December 3, 2025, Plaintiff Blue
Hill Specialty Insurance Company, Inc. filed its complaint against Defendants Metaksya
Sahakyan, Ruzanna Harutyunyan, and Gayane Hovhannisyan, seeking/alleging a
single cause of action for declaratory relief.

On

March 23, 2026, Defendants filed their demurrer to the complaint.

On

June 15, 2026, Plaintiff filed its opposition brief.

On

June 23, 2026, Defendants filed their reply brief.

II.

LEGAL STANDARD

A demurrer is a procedure to object to a pleading set

forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence

or other extrinsic matters, a demurrer analysis considers only those defects

which appear on the face of the pleading or are judicially noticed. *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902,

905. When considering demurrers, courts assume the truth

of the facts alleged in the pleading and read the allegations liberally and in

context. *Schifando v. City of Los Angeles* (2003)

31 Cal.4th 1074, 1081.

A

demurrer for sufficiency attacks a pleading on the ground that it does

not contain facts sufficient to state a cause of action.¿

Code Civ. Proc., § 430.10 (e); *Hahn v. Mirda* (2007) 147

Cal.App.4th 740, 747.¿ Parties may also demur to causes of action

individually.¿ In either case, the procedure is also called a 'demurrer for

sufficiency,' and it tests the pleading by itself, alone and disconnected from

extraneous matters.¿ *Hahn*, at p. 747.

III.

DISCUSSION

Defendants

demur to the complaint. The demurrer is

overruled.

a.

Allegations in the Complaint

Plaintiff

pleads that Defendants submitted a fraudulent insurance claim (claim

#23-2433002) related to a purported hit and run collision that occurred on September 26, 2023. Plaintiff pleads it has obtained evidence indicating that the purported collision was staged. Plaintiff pleads its conclusion is supported by the fact that Defendants' claim is virtually identical to at least three (3) claims submitted by other non-party claimants, all of whom are connected through individuals named Karen Mourdian and Erik Vermishiyan. Plaintiff pleads additional specific facts about Defendants' claim that support its conclusion that the claim is fraudulent. (Complaint, ¶¶ 4-19.)

Plaintiff

pleads Defendants' policy's uninsured/underinsured motorist bodily injury provision states that Plaintiff "may deny coverage to an insured for an accident or loss if you knowingly concealed or misrepresented any material fact or circumstance or engaged in fraudulent conduct in connection with the presentation or settlement of a claim."

(Policy, p. 24, § 10.) Plaintiff

pleads that the policy mandates that a claimant cooperate in investigations regarding an accident or loss.

(Complaint, ¶¶ 21-25.)

Plaintiff

pleads an actual controversy now exists relating to the parties' rights and duties under the policy. Specifically,

Plaintiff pleads that because its evidence "indicates that Defendants intentionally caused and/or participated in the collisions and presented false insurance claims ... any loss involving bodily injury or property damage was not caused by an accident and is excluded from coverage under the Policy." (Complaint, ¶ 25.)

b. The Demurrer

Defendants

demur to Plaintiff's sole cause of action for declaratory relief.

Generally, a claim

for declaratory relief may proceed if an actual controversy is alleged, even if the plaintiff is not ultimately entitled to a judgment in its favor. *Osseous Technologies of Amer., Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 364.

Here, Defendants argue Plaintiff has no valid claim for declaratory relief because “[t]his is a liability dispute, not a coverage dispute.” (Demurrer, p. 3:26.) Defendants argue this action is thus subject to mandatory arbitration under Insurance Code section 11580.2.

As a threshold matter, the Court notes that Defendants present no authority for their position that an entitlement to arbitration is proper grounds for a demurrer. The appropriate avenue for raising such an issue is to file a motion to compel arbitration. Defendants have filed no such motion.

Even if the Court were to accept Defendants’ argument that an entitlement to arbitration is, in itself, a basis for demurrer, Defendants’ argument would still fail because they have not shown they are entitled to arbitration of the question of whether the purported hit and run constitutes a covered loss.

“No policy of bodily injury liability insurance covering liability arising out of the ownership, maintenance, or use of any motor vehicle ... shall be issued or delivered in this state to the owner or operator of a motor vehicle...unless the policy contains...a provision ... insuring the insured... for all sums within the limits that ...they...shall be legally entitled to recover as damages for bodily injury or wrongful death from the owner or operator of an uninsured motor vehicle.” Ins. Code, § 11580.2 (a).

“The policy... shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration.” Ins. Code, § 11580.2 (f).

As interpreted by the Supreme Court, Insurance Code section 11580.2 (f) requires arbitration of only two (2) issues: whether an insured is entitled to recover against an uninsured motorist, and, if so, the amount of her damages. *Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190, 1200 (Bouton). A court rather than an

arbitrator must determine whether a claimant “is a covered person under the insurance policy.” *Id.* at p. 1201.

Here, the subject policy’s terms related to arbitration accord with the requirements of Insurance Code section 11580.2 (f), as interpreted by the Supreme Court in *Bouton*. The policy states, “If we and an insured cannot agree on: 1. the legal liability of the operator or owner of an uninsured auto or an underinsured auto; or 2. the amount of the damages sustained by the insured; this will be determined by arbitration.” (See Complaint, p. 98; see Policy p. 21.)

The parties’ dispute is not whether Defendants are entitled to recovery based on the liability of an uninsured/underinsured motorist. Rather, the heart of the parties’ dispute is whether “Defendants intentionally caused and/or participated in the collisions and presented false insurance claims,” thus mandating a conclusion that “any loss involving bodily injury or property damage was not caused by an accident and is excluded from coverage under the Policy.” (Complaint, ¶ 25.) Because these allegations present a dispute as to whether Defendants and the purported hit and run accident are, respectively, covered as insureds and covered as an insured loss, the complaint presents a threshold question that should be decided by the trial court before the matter is submitted to arbitration. See *Bouton*, *supra*, 43 Cal.4th at p. 1201 (court rather than arbitrator determines whether claimant “is a covered person under the insurance policy”).

In sum, Defendants present no authority for sustaining their demurrer on grounds that they are entitled to seek arbitration. Even if Defendants had presented such authority, the Court would still agree with Plaintiff that “[t]he underlying coverage dispute is not arbitrable and should be resolved before any arbitration is considered.” (Opposition, p. 9:19-20.) Because the parties’ dispute is fundamentally about whether Defendants qualify as insured individuals under the policy’s terms (as opposed to whether Defendants, as insureds, should be allowed to recover), said dispute presents a threshold question that may be decided in litigation before the case is submitted to arbitration.

The demurrer is overruled.

IV.

CONCLUSION

The

Court OVERRULES Defendants Metaksya Sahakyan, Ruzanna Harutyunyan, and Gayane Hovhannisyan's demurrer to Plaintiff Blue Hill Specialty Insurance Company, Inc.'s Complaint.

Defendants

Metaksya Sahakyan, Ruzanna Harutyunyan, and Gayane Hovhannisyan are ORDERED to file their Answer to the Complaint within ten (10) days. See Cal. Rules of Court, Rule 3.1320(j).

Plaintiff Blue

Hill Specialty Insurance Company, Inc. is ORDERED to give notice.

DATED: June 29, 2026

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Judge of the

Superior Court